

HOUSE No. 173

The Commonwealth of Massachusetts

PRESENTED BY:

Michael J. Soter and Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the regulation of Delta-9 THC.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Michael J. Soter</i>	<i>8th Worcester</i>	<i>1/17/2025</i>
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/17/2025</i>

HOUSE No. 173

By Representatives Soter of Bellingham and Jones of North Reading, a petition (accompanied by bill, House, No. 173) of Michael J. Soter and Bradley H. Jones, Jr., relative to the regulation of Delta-9 THC. Cannabis Policy.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the regulation of Delta-9 THC.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 1 of Chapter 94G of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting the following definitions:

3 Delta-9 Tetrahydrocannabinol (Delta-9 THC), The chemical compound found in the
4 cannabis plant that is primarily responsible for its psychoactive effects, commonly referred to as
5 THC, regardless of concentration level in cannabis or cannabis products.

6 Delta-9 THC Products, Any product containing Delta-9 THC, regardless of whether the
7 product is derived from marijuana or hemp, that is intended for human consumption, including
8 but not limited to edibles, concentrates, tinctures, oils, or other consumables.

9 SECTION 2. Chapter 94G of the General Laws, as so appearing, is hereby amended by
10 inserting after Section 3 the following section:

Section 3A. Regulation of Delta-9 Tetrahydrocannabinol Products by the Cannabis Control Commission

(a) The Cannabis Control Commission shall be responsible for the regulation, licensure, and oversight of all Delta-9 THC products within the Commonwealth of Massachusetts, irrespective of whether such products are derived from marijuana or hemp.

(b) No person shall manufacture, distribute, or sell any Delta-9 THC product in the Commonwealth unless such product is licensed and registered with the Cannabis Control Commission in accordance with this chapter.

(c) The Cannabis Control Commission shall establish and enforce rules, regulations, and standards governing Delta-9 THC products, including, but not limited to: product safety standards, including the testing of Delta-9 THC concentration levels in cannabis products, to ensure compliance with all applicable public health and safety standards; packaging and labeling requirements to clearly state the Delta-9 THC content, appropriate serving sizes, safety warnings, and any other necessary consumer information; licensing requirements for producers, manufacturers, distributors, and retailers of Delta-9 THC products; and advertising and marketing restrictions to prevent any promotional activities that target or appeal to minors or that would otherwise pose a risk to public health.

(d) The Cannabis Control Commission may issue fines or penalties for non-compliance with the regulations established under this section and may suspend or revoke licenses for egregious violations.

SECTION 3. Section 6 of Chapter 94G of the General Laws, as appearing in the 2022 Official Edition, is hereby amended by inserting after subsection (b) the following subsection:

(c) Notwithstanding any general or special law to the contrary, the Cannabis Control Commission shall have the authority to regulate all cannabis-related products, including Delta-9 THC products, regardless of their origin, including marijuana or hemp, to ensure that they are produced, distributed, and consumed safely in accordance with state laws.

SECTION 4. Chapter 94G of the General Laws, as so appearing, is hereby amended by adding after section 8 the following section:

Section 8A. Annual Report on Delta-9 THC Product Oversight

(a) The Cannabis Control Commission shall submit an annual report to the clerks' office of the house of representatives and the senate on the status of Delta-9 THC product regulation, including but not limited to the number of licenses issued, the volume of Delta-9 THC products sold, and any public health concerns or issues identified.

(b) The report shall also include recommendations for any changes or improvements to the regulation and oversight of Delta-9 THC products in the Commonwealth.

SECTION 5. All Delta-9 THC products in circulation at the time of enactment of this legislation that do not comply with the newly established regulatory framework shall have a period of no less than 180 days from the effective date of this act to come into compliance with the Cannabis Control Commission's licensing and regulatory requirements.

SECTION 6. This act shall take effect on the first day of the month following 90 days after passage.